

Lease between Transcan and Fitness without attaching the Lease as an exhibit to the SPROGs. (Garcia Decl., Ex. A.) Fitness objected to these SPROGs on several grounds, including that they were not full and complete. (Garcia Decl., Ex. B.)

Pursuant to C.C.P. § 2030.060(d), “[e]ach interrogatory shall be full and complete in and of itself. No preface or instruction shall be included with a set of interrogatories unless it has been approved under Chapter 17 (commencing with Section 2033.710).” This rule is violated when a responding party must necessarily review/consider other materials in order to answer the question. (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 1996) § 8:979.5; *Catanese v. Superior Court* (1996) 46 Cal.App.4th 1159, 1164, disapproved on other grounds by *Lewis v. Superior Court* (1999) 19 Cal.4th 1232.) In the present case, Fitness is correct that SPROG nos. 2, 3, 11, and 12 cannot be answered without resorting to a separate document, the Lease. Therefore, they are not full and complete in and of themselves.

Accordingly, the motion is denied as to SPROG nos. 2, 3, 11, and 12.

SPROG nos. 4 and 5 seek information about when and how Fitness learned that Transcan sold its parcels in the Shopping Center and that Baypointe only owned one parcel. (Garcia Decl., Ex. A.) Fitness objects to both SPROGs on the ground they are compound. While Fitness is correct that “compound, conjunctive or disjunctive” interrogatories are objectionable, this “rule should probably apply only where more than a single subject is covered by the question. Questions regarding the same subject should be allowed although they include an ‘and’ or ‘or.’” (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 1996) § 8:979; see also, *Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1291.) As each of these SPROGs cover a single subject, the Court finds that Fitness’ objection lacks merit. Despite the objection, Fitness provided a substantive response to no. 4, but not to no. 5.

Accordingly, the motion is denied as to SPROG no. 4 but granted as to no. 5. Defendant is ordered to serve verified, code-compliant further responses to SPROG no. 5 within 20 days.

As neither party prevailed entirely on the motion, both parties’ requests for sanctions are denied.

Moving party is ordered to submit a proposed order consistent with this Court’s ruling by no later than June 10, 2026, by 5:00 p.m.

If a timely request for oral argument is made by no later than 4:30 p.m. on June 9, 2026, oral argument will be heard on June 10, 2026 at 10:00 a.m. (not 8:30 a.m.).

4.

CASE #	CASE NAME	HEARING NAME
CVRI2507291	GONZALEZ VS COUNTY OF RIVERSIDE	DEMURRER ON COMPLAINT

Tentative Ruling:

The demurrer is sustained as to the second cause of action for NIED, with ten (10) days leave to amend.

If a timely request for oral argument is made by no later than 4:30 p.m. on June 9, 2026, oral argument will be heard on June 10, 2026 at 10:00 a.m. (not 8:30 a.m.).